

****11.07.2022****

****Sanction for Violation of GDPR****

The National Supervisory Authority has completed an investigation in June at S.C. Delivery Solutions S.A. (Sameday) and found a violation of the provisions of Article 29, Article 32 paragraph (1) letter b) and paragraph (2) of the General Data Protection Regulation.

S.C. Delivery Solutions S.A. (Sameday) was sanctioned with a fine amounting to 14,825.70 lei (equivalent to 3,000 EURO).

The investigation was initiated following complaints filed by an individual who reported that the database of S.C. Delivery Solutions S.A. (Sameday) was for sale on the website

<https://raidforums.com/Thread-SELLING-=ae-SAMEDAY-RO-Romanian-Postal-Service>.

During the investigation, it was established that S.C. Delivery Solutions S.A. (Sameday) is the authorized person of two companies for the processing of personal data, being obliged to take all necessary measures to systematically protect the processing of personal data of individuals, as provided by Article 28 paragraph (3) letter c) of the GDPR, including against unauthorized disclosure and/or access to data.

It was also found that personal data belonging to a number of 26,566 data subjects (number and date AWB – the transport document that must accompany the shipment of any package, courier identifiers, sender's name, recipient's first and last name, phone number, address, delivery status, type of service, package weight, amount to be collected, delivery interval) were available for sale on the RaidForums forum and could be accessed using the link

<https://raidforums.com/Thread-SELLING-=æ-SAMEDAY-RO-Romanian-Postal-Service>.

As such, S.C. Delivery Solutions S.A. was sanctioned with a fine because it did not implement appropriate technical and organizational measures to ensure a level of security corresponding to the risk of processing for the rights and freedoms of data subjects, which led to the unauthorized disclosure and/or access to personal data for 26,566 data subjects.

****Legal and Communication Department****

****A.N.S.P.D.C.P.****